

PRIVACY POLICY

This Privacy Policy (hereinafter — the “Policy”) sets out the procedure for the collection, use, storage, and protection of the personal data of persons who visit the website motophd.com (hereinafter — the “Site”) and/or order access to online courses through it. The Policy is an integral part of the Public Offer Agreement published on the Site.

The controller of personal data is individual entrepreneur (physical person-entrepreneur) Bilyi Volodymyr Viktorovych (taxpayer registration card number 2469416512), hereinafter — the “Controller”, “we”, who is the Executor under the Offer.

The processing of personal data is carried out in accordance with the Law of Ukraine “On Personal Data Protection” of 01.06.2010 No. 2297-VI, and, with respect to data subjects who are residents of the European Union, also in accordance with Regulation (EU) 2016/679 (GDPR).

1. GENERAL PROVISIONS

- 1.1.** By using the Site and/or placing an order, the user confirms that they have read and understood the terms of this Policy.
- 1.2.** This Policy applies to personal data that the Controller processes through the Site, the Platform, the Personal Account, e-mail, and other channels of interaction in connection with placing orders, payment, providing access to Courses, organizing and conducting Individual Consultations, handling inquiries, refunds, and protecting the Controller’s rights and legitimate interests.
- 1.3.** We process personal data fairly, for specific, predetermined, and legitimate purposes, to the extent necessary to achieve them, and we do not process it in a manner incompatible with those purposes.
- 1.4.** The terms “Executor,” “Author,” “User,” “Course,” “Package,” “Individual Consultation,” “Platform,” “Personal Account,” “Acceptance,” and “Payment Service” are used in this Policy with the meanings defined in the Offer. The provisions of the Policy on the rights of data subjects also apply to other individuals whose personal data the Controller processes, regardless of whether they have entered into the Agreement.

2. WHAT DATA WE COLLECT

- 2.1.** Data provided when placing an order: name, e-mail address, and, where the relevant field is available on the Site, phone number, as well as details of the selected Course and participation Package, and the date and number of the order.
- 2.2.** Data required to provide access to the Course and to confirm the conclusion and performance of the Agreement: account identifier, details of the granting and use of access to the Personal Account, the date and time of Acceptance, the version of the Offer accepted, details of the marking of relevant boxes (checkboxes), and IP address — to the extent actually recorded by the Site and the Platform.
- 2.3.** Data required to conduct consultations under a Package with feedback: name, contact details, including e-mail address and an identifier in the agreed messenger, details of the agreed date and time of the consultation and its conduct, as well as information the User provides in connection with the consultation.
- 2.4.** Payment data: payment card details are processed by the WayForPay payment service or another payment provider through which payment is made, and by the banks involved in processing the payment, in accordance with applicable payment data security requirements. The Controller does not receive or store the full payment card number or its security code (CVV/CVC). To confirm payment, perform the Agreement, and process refunds, the Controller receives payment details from the Payment Service, including the payment identifier, amount, currency, date, and status.
- 2.5.** Data provided when contacting the Controller: name, contact details, content of correspondence, details of the order and payment, description of the issue, demands or claims, as well as documents and other materials necessary for their review, including for refunds.
- 2.6.** Data required to verify compliance with the terms of the Offer, where such verification is carried out: information about age, the existence of consent of a legal representative or of full civil legal capacity, as well as information necessary to verify the restrictions established by clause 1.5 of the Offer. The scope of the data requested is determined by the specific purpose of the verification and the applicable legal basis. Documents or information not required for such verification are not requested.
- 2.7.** Technical data: IP address, browser type and version, device data, date and time of visits, cookie data and similar technologies — depending on the tools actually used and the User’s settings. The terms of use of cookies are set out in Section 6 of this Policy.
- 2.8.** We do not purposefully collect special categories of personal data, including data on health, religious or political beliefs, etc., and we ask that such data not be sent through feedback forms unless there is a direct need to do so.

3. PURPOSE AND LEGAL BASES FOR PROCESSING

- 3.1.** Placing an order, processing payment, providing access to the Course, organizing Individual Consultations, providing support, and sending messages necessary to fulfill the order — on the basis of the necessity to conclude and perform the Agreement with the User, including taking steps at their request prior to concluding the Agreement.
- 3.2.** Handling inquiries and refunds — on the basis of the necessity to perform the Agreement or a corresponding obligation established by law, depending on the content of the inquiry. Handling other requests not related to the conclusion or performance of the Agreement or a statutory obligation — on the basis of the Controller’s legitimate interest in ensuring communication with persons who contact it.
- 3.3.** Maintaining tax records, storing documents on business transactions, complying with the lawful requirements of authorized government bodies, and other obligations established by applicable law — on the basis of the necessity to fulfill the Controller’s corresponding statutory obligation.

- 3.4.** Ensuring the security of the Site, the Platform, and Personal Accounts, preventing fraud, and detecting unauthorized access, transfer of account credentials, or unlawful distribution of Course materials — on the basis of the Controller's legitimate interest in protecting its information systems, Course materials, and the proper performance of the Offer.
- 3.5.** Retaining evidence of Acceptance, payment, and performance of the Agreement, handling payment disputes, and asserting, substantiating, or defending legal claims — on the basis of the Controller's legitimate interest in protecting its rights and property interests.
- 3.6.** Sending marketing messages — solely on the basis of the recipient's separate prior consent, which may be withdrawn at any time. Refusing such messages does not affect the ability to purchase the Course or receive access and consultations already paid for. Messages about payment, access, scheduling of consultations, refunds, and other matters relating to the performance of the Agreement do not require consent to marketing communications, provided they contain no advertising content.
- 3.7.** Analyzing technical errors and improving the operation of the Site — on the basis of the Controller's legitimate interest in ensuring its stability and convenience. The use of analytical and marketing cookies and the related data processing that requires consent are carried out only after such consent has been obtained, in accordance with Section 6 of this Policy.

4. RECIPIENTS OF PERSONAL DATA

- 4.1.** The WayForPay payment system and other payment providers connected on the Site — receive the data necessary to process payment, refunds, and the settlement of payment disputes.
- 4.2.** The Course Author — receives the name and contact details of the User who purchased a Package with feedback, as well as details of the relevant Package and the consultation request, to the extent necessary for organizing and conducting it.
- 4.3.** The Controller's technical service providers, including the Site's hosting provider, e-mail or mailing service(s), and, where applicable, a CRM system — are given access to data to the extent necessary to provide the relevant services.
- 4.4.** Government authorities — receive data in the cases and in the manner directly provided for by applicable law.
- 4.5.** The Controller does not sell personal data to third parties and does not transfer it for purposes unrelated to the provision of services through this Site without the separate consent of the data subject. Data is transferred only for the purposes defined in this Policy, on an appropriate legal basis, and to the extent necessary.

5. INTERNATIONAL DATA TRANSFER

- 5.1.** Personal data is processed and stored on the servers of the Controller's technical service providers referred to in Section 4 of this Policy. If such servers are located outside Ukraine and the European Economic Area, the Controller ensures the application of appropriate data protection safeguards provided for by law (including, where applicable, standard contractual clauses).

6. COOKIES AND ANALYTICS

- 6.1.** The Site uses technically necessary cookies to ensure its operation, the functioning of the Personal Account, and the placing of orders. Where the relevant tools are actually connected, analytical and marketing cookies may also be used to analyze traffic and advertising effectiveness.
- 6.2.** A person may decline non-essential cookies or withdraw previously given consent through the cookie settings on the Site. Cookies can additionally be managed through browser settings. Blocking technically necessary cookies may affect the operation of certain features of the Site. Cookies whose use requires consent under applicable law are activated only after such consent has been obtained through the relevant banner on the Site.

7. DATA RETENTION PERIOD

- 7.1.** Personal data is retained no longer than necessary for the purposes of its processing. Data required to provide access to the Course and to perform other obligations under the Agreement is retained for the period of performance of the relevant obligations. Unlimited access to the Course does not mean unlimited storage of all personal data received.
- 7.2.** Documents and information required for tax accounting are retained for the periods established by the legislation of Ukraine, taking into account the procedure it provides for calculating and extending such periods. Data required for asserting or defending legal claims is retained for the applicable limitation periods, and, in the event of a dispute, until its final resolution and, if necessary, until enforcement of the relevant decision is completed.
- 7.3.** Data for marketing communications is used until consent is withdrawn or the relevant mailing is discontinued. After unsubscribing, only the information necessary to confirm compliance with legal requirements and to prevent the repeated sending of unwanted messages may be retained. The lifetimes of cookies are specified in the cookie settings on the Site.
- 7.4.** Once the purpose of processing has been achieved and the applicable retention periods have expired, personal data is deleted or irreversibly anonymized, unless there is another lawful basis for its further storage.

8. RIGHTS OF THE DATA SUBJECT

- 8.1.** The data subject has the right to: obtain confirmation that their data is being processed and to access it; request correction of inaccurate data; request the erasure of data ("the right to be forgotten") in the cases provided for by law; object to processing carried out on the basis of legitimate interest; withdraw given consent at any time, without affecting the lawfulness of processing carried out before its withdrawal; and receive their data in a structured, machine-readable format (the right to data portability) where this is technically possible.
- 8.2.** To exercise these rights, please contact the Controller at the e-mail address specified in Section 12 of this Policy.

- 8.3.** A request is reviewed within the period established by applicable law. If a request is manifestly unfounded, excessive, or repetitive, the Controller may refuse to fulfill it or require reimbursement of reasonable costs in the cases provided for by law.
- 8.4.** A data subject whose rights have been violated has the right to file a complaint with the Ukrainian Parliament Commissioner for Human Rights, and a data subject who is a resident of the European Union may also file a complaint with the competent data protection supervisory authority of their country of permanent residence.

9. MINORS

- 9.1.** The Site is not directed at children under the age of 14. The Controller does not knowingly collect personal data of such persons.
- 9.2.** Persons aged 14 to 18 may provide their data only with the consent of their parents or other legal representatives, in accordance with the terms of the Public Offer Agreement.
- 9.3.** If the Controller becomes aware that the personal data of a person under 14 years of age has been collected without the consent of a legal representative, such data will be deleted.

10. DATA SECURITY

- 10.1.** The Controller takes appropriate technical and organizational measures to protect personal data against unauthorized access, loss, destruction, or disclosure, including limiting access to data to those persons who need it to perform their functions.
- 10.2.** If a personal data breach is detected that creates a risk to the rights and freedoms of data subjects, the Controller notifies the affected persons and, in the cases provided for by law, the competent supervisory authority, without undue delay.
- 10.3.** No method of transmitting or storing information guarantees absolute security. The Controller is not liable for security breaches caused by circumstances beyond its reasonable control, provided it has taken appropriate protective measures.

11. MARKETING COMMUNICATIONS

- 11.1.** The Controller sends advertising and marketing messages by e-mail or other means of communication only with the prior consent of the person, unless otherwise directly provided for by applicable law. Giving such consent is voluntary and is not a condition for purchasing the Course or obtaining access to it.
- 11.2.** A person may withdraw their consent to receive marketing messages at any time by using the unsubscribe link in the message or by contacting support@motophd.com. Upon receipt of such a request, the sending of marketing messages will be discontinued without undue delay.
- 11.3.** Messages necessary for placing an order, confirming payment, providing access to the Course, organizing consultations, informing about changes in the operation of the Site, or fulfilling other obligations under the Agreement are not marketing messages and may be sent without separate consent.

12. CONTACT DETAILS

- 12.1.** For questions regarding the processing of personal data, the exercise of rights, or the withdrawal of consent, a person may contact the Controller at the e-mail address: support@motophd.com.

Version dated September 19, 2026.